



National Health Service (Vocational Training) Act 1976

1976 CHAPTER 59

An Act to require medical practitioners seeking to provide general medical services under the National Health Service Act 1946 or the National Health Service (Scotland) Act 1947 to be suitably experienced, and for connected purposes. [15th November 1976]

BE IT ENACTED by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) After the appointed day—

- (a) the Medical Practices Committee shall refuse any application to which this paragraph applies if the applicant is not suitably experienced ; and
- (b) a health authority shall not make any arrangements under section 33 of the 1946 Act or section 34 of the 1947 Act with a medical practitioner for the provision by him of general medical services for persons in its area unless the said Committee have granted an application by him for inclusion in the list kept by the authority of medical practitioners undertaking to provide general medical services for persons in that area.

Experience required by medical practitioners seeking to provide general medical services.

(2) Subsection (1)(a) above applies to any application made after the appointed day by a medical practitioner for inclusion in the list kept for its area by a health authority of medical practitioners undertaking to provide general medical services for persons in that area.

(3) For the purposes of this Act a medical practitioner is "suitably experienced" if, but only if, he either—

- (a) has acquired the prescribed medical experience ; or
- (b) is by virtue of regulations exempt from the need to have acquired that experience.

Regulations
in connection
with s. 1.

2.—(1) Regulations may for the purposes of this Act make provision—

- (a) for prescribing the medical experience needed to satisfy section 1(3)(a) above ;
- (b) as to the documents which an applicant may or must produce as evidence that he is suitably experienced or has acquired medical experience of any particular kind ;
- (c) for requiring an applicant who claims to have acquired the prescribed experience to submit particulars of his experience to a prescribed body, and for requiring that body, if satisfied that he has acquired the prescribed experience, to issue him a certificate (a "certificate of prescribed experience") to that effect ;
- (d) for enabling an applicant without the prescribed experience who considers that the medical experience which he has acquired is, or ought to be regarded as, equivalent to the prescribed experience to submit particulars of that experience to a prescribed body, and for requiring or enabling that body, if satisfied that the applicant's medical experience is so equivalent, to issue him a certificate (a "certificate of equivalent experience") to that effect ;
- (e) for treating an applicant who holds a certificate of equivalent experience as satisfying section 1(3)(a) above ;
- (f) as to the circumstances or conditions in or subject to which a medical practitioner is exempt from the need to have acquired the prescribed experience ;
- (g) for conferring on an applicant who is refused a certificate of prescribed experience or a certificate of equivalent experience a right of appeal to a body constituted by the Secretary of State, and for any matter for which it appears to the Secretary of State to be requisite or expedient to make provision in consequence of the conferring of that right ;
- (h) for anything authorised or required by this Act to be prescribed or otherwise provided for by regulations.

(2) Regulations under this section shall be framed so as to allow the prescribed experience to be acquired without undertaking whole-time employment.

(3) Any power under this section to make regulations—

- (a) may be exercised so as to make different provision for different areas or different periods of time or in relation to different cases or different circumstances ;
- (b) includes power to make such incidental or supplemental provision in the regulations as the Secretary of State considers appropriate ; and
- (c) shall be exercisable by statutory instrument, which shall be subject to annulment in pursuance of a resolution of either House of Parliament.

(4) In this section—

“ applicant ” means a medical practitioner who has made or proposes to make an application to which section 1(1)(a) above applies ;

“ the prescribed experience ” means the medical experience for the time being prescribed for the purposes of section 1(3)(a) above.

3.—(1) In section 34(4) of the 1946 Act and section 35(4) of the 1947 Act (which restrict the power of the Medical Practices Committee to refuse applications for inclusion in a health authority's list of medical practitioners undertaking to provide general medical services), after “ Except as provided by the last foregoing subsection ” there shall be inserted “ or as required by section 1 of the National Health Service (Vocational Training) Act 1976 ”. Minor and consequential amendments.

(2) The rights of appeal under section 34(6) of the 1946 Act and section 35(6) of the 1947 Act against the refusal of an application for inclusion in such a list as is mentioned in section 1(2) above shall not apply where the application is refused in compliance with section 1(1)(a) above, and accordingly in each of the said subsections (6) after “ refused ” there shall be inserted “ otherwise than in compliance with section 1(1)(a) of the National Health Service (Vocational Training) Act 1976 ”.

(3) Sections 36 and 37 of the Health Services and Public Health Act 1968 (payment of allowances and remuneration to members of certain bodies) shall each have effect as if the bodies within subsection (1)(a), and the bodies within subsection (2), included any body on which functions are conferred by regulations under section 2 above.

(4) Section 57(6) of the National Health Service Reorganisation Act 1973 (power to modify the Health Service Acts in connection with their consolidation) shall have effect as if the reference to those Acts included this Act.

Interpretation,
etc.

1946 c. 81.

1947 c. 27.

4.—(1) In this Act—

“the 1946 Act” means the National Health Service Act 1946 ;

“the 1947 Act” means the National Health Service (Scotland) Act 1947 ;

“the appointed day” means—

(a) for England and Wales, such day as may be appointed by regulations for the purposes of this Act in its application there ; and

(b) for Scotland, such day as may be so appointed for the purposes of this Act in its application there ;

“health authority” means, for England and Wales, an Area Health Authority or, for Scotland, a Health Board ;

“medical experience” includes hospital experience in any specialty ;

“the Medical Practices Committee” means, for England and Wales, the Medical Practices Committee constituted under section 34 of the 1946 Act or, for Scotland, the Scottish Medical Practices Committee constituted under section 35 of the 1947 Act ;

“prescribed” means prescribed by regulations ;

“regulations” means regulations made by the Secretary of State under section 2 above ;

and, unless the context otherwise requires, any other expression to which a meaning is assigned for England and Wales by the 1946 Act or for Scotland by the 1947 Act has that meaning also for the purposes of this Act in its application there.

(2) Except so far as the context otherwise requires, any reference in this Act to an enactment is a reference to it as amended by or under any other enactment, including this Act.

(3) There shall be defrayed out of money provided by Parliament any increase attributable to the provisions of this Act in the sums payable out of such money under any other Act.

Citation and
extent.

5.—(1) This Act may be cited as the National Health Service (Vocational Training) Act 1976, and—

(a) the National Health Service Acts 1946 to 1973 and this Act, so far as it applies to England and Wales, may be cited together as the National Health Service Acts 1946 to 1976 ; and

(b) the National Health Service (Scotland) Acts 1947 to 1973 and this Act, so far as it applies to Scotland, may be cited together as the National Health Service (Scotland) Acts 1947 to 1976.

(2) This Act does not extend to Northern Ireland.